2026-1333

UNITED STATES COURT OF APPEALS FOR THE FEDERAL CIRCUIT

IN RE ABLYNX N.V., SANOFI,
Appellants

Appeal from the United States Patent and Trademark Office, Patent Trial and Appeal Board in Serial No. 17/409,019.

BRIEF FOR APPELLEE, DIRECTOR OF THE UNITED STATES PATENT AND TRADEMARK OFFICE

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STATEMENT OF RELATED CASES

The Director is not aware of any other appeal in connection with the Patent Trial and Appeal Board ("Board") proceeding below that is before this or any other court. The Director is also unaware of any other case pending in this or any other court that will directly affect, or be directly affected by, the Court's decision in this appeal.

I. Statement of the Issue

Appellants Ablynx N.V. and Sanofi seek claims to a fusion protein that they admit are patentably indistinct from claims in six prior-issued patents owned, in whole or in part, by one or both Appellants. The claims were rejected for obviousness-type double patenting (ODP) based on this Court's precedent applying ODP to address concerns over divided ownership and the risk of harassment by multiple assignees. There is no dispute that any patent that would issue from the underlying application will not result in extending the term of Appellants' six other patents. The issue on appeal is straightforward: whether this Court's precedent supports an ODP rejection based solely on the risk of harassment by multiple assignees.

II. Statement of the Case

This appeal arises from the examination of application serial no. 17/409,019 (the '019 application or Appellants' application), which is assigned to Appellants Ablynx N.V. and Sanofi. Appx20-151; Appx1169-1171.[1] The Examiner rejected pending claims 51 and 54-56 for ODP as being unpatentable over claims of six reference patents. Appx4; Appx3424-3441; Appx4789-4808. Ablynx owns, alone

[1] "Appx__" refers to the Joint Appendix in this case; "Br. __" refers to Appellants' Opening Brief.

or in part, all six reference patents, whereas Sanofi (or Merck) shares ownership for some of the six reference patents. Each reference patent also shares at least one common inventor to the ’019 application. The Board affirmed the Examiner’s ODP rejections (Appx1-19), and this appeal followed.

A. Appellants admit their pending claims are not patentably distinct over their issued patent claims.

The ’019 application was filed on August 23, 2021, and is a continuation application in a series of applications that claim priority to International Application PCT/EP2012/062251, filed June 25, 2012. Appx20. Appellants rely on that PCT application date as the patent-term filing date for their application (i.e., the date from which their 20-year patent term is calculated). Br. at 3. The first-filed application in the series of applications was filed June 25, 2012, as Application No. 14/128,681 (the ’681 application), the national stage entry of PCT/EP2012/062251. Appx12; Appx190; *see* 35 U.S.C. § 363.

Prior to filing the ’019 application, Appellants filed at least five other continuation applications in the same family, claiming priority to that first-filed ’681 application, resulting in the grant of four patents (which are not part of the underlying rejections here).

B. The Board affirmed the Examiner's ODP rejections of Appellants' pending claims.

The Board affirmed the Examiner's rejection of Appellants' pending claims as being unpatentable under ODP over claims in the six reference patents. The Board determined that this Court's decision in *In re Fallaux*, 564 F.3d 1313 (Fed. Cir. 2009) "is directly on point" to the instant case, and under that binding precedent, it was appropriate for the Examiner to reject the pending claims under ODP. The Board explained that although any patent granted on the '019 application would expire before the reference patents, the Examiner's rejection was proper because "there is a second justification for obviousness-type double patenting—harassment by multiple assignees."

Appellants did not contest that the '019 application claims subject matter that is patentably indistinct from their six prior-issued reference patents. Instead, Appellants argued that (1) the reference patents do not qualify as ODP references because they have a later patent-term filing date than the '019 application; (2) the two-way test for an ODP rejection should apply when the reference patent's patent-term filing date is later than that of the challenged application; and (3) that principles of equity favor no ODP rejection. The Board was not persuaded.

III. Summary of the Argument

The Board correctly determined that Appellants' pending claims are

unpatentable for ODP. Appellants concede they already own at least six patents that claim subject matter that is patentably indistinct from the claims on appeal. The doctrine of ODP places limits on an inventor's ability to obtain multiple patents on a single invention or obvious variant thereof. Appellants' approach would limit ODP only to scenarios where patent issuance would result in unjustified patent term extension. Appellants circumvent the anti-harassment rationale for ODP that this Court has repeatedly endorsed as a mechanism to avoid separate ownership and enforcement of multiple patents on essentially the same invention. The Board's decision properly applied this Court's binding precedents on ODP. This Court should affirm.

IV. Argument

A. Standard Of Review

Appellants have the burden to show that the Board committed reversible error. *In re Watts*, 354 F.3d 1362, 1369 (Fed. Cir. 2004). The ultimate conclusion of obviousness-type double patenting is a question of law that this Court reviews de novo. *In re Emert*, 124 F.3d 1458, 1460 (Fed. Cir. 1997).

B. The Board correctly determined that the cited reference patents render Appellants' pending claims unpatentable for ODP.

Section 101 of the Patent Act prohibits an individual from "obtaining more

than one patent on the same invention." 35 U.S.C. § 101 (emphasis added); *see Abbvie*, 764 F.3d 1366. ODP is a judicially created doctrine grounded in § 101 and in public policy to limit the issuance of multiple patents on non-distinct inventions. *Abbvie*, 764 F.3d at 1372-74. One policy rationale underlying the doctrine is to protect the public from the risk of harassment by multiple assignees who could separately assert infringement of patents claiming the same invention or an obvious variant. *See Fallaux*, 564 F.3d at 1319 (affirming the Board's ODP rejection because of the potential for harassment by multiple assignees even though there was no time-wise extension of the patent); *Hubbell*, 709 F.3d at 1147 (reaffirming *Fallaux* and the multiple-assignee harassment rationale); *In re Van Ornum*, 686 F.2d 937, 944-48 (C.C.P.A. 1982) (approving the requirement for common ownership in terminal disclaimers because of the potential for harassment by multiple assignees). The multiple-assignee harassment rationale renders the underlying ODP rejections appropriate and Appellants' pending claims unpatentable.

Appellants concede that, if the '019 application's claims were to issue, it would be at least the seventh patent[2] to claim patentably indistinct subject matter, and under Appellants' approach would not have a terminal disclaimer tying the

[2] In response to other ODP rejections, Appellant filed terminal disclaimers over three other patents or patent applications. Appx3303-3305; Appx3457-3459.

’019 patent to any of those six reference patents. True, the six reference patents at issue in this appeal would expire after any patent granted on the ’019 application’s pending claims. But the risk of harassment by multiple assignees still exists without a terminal disclaimer to tie ownership of the ’019 application to Appellants’ other patentably indistinct patents—i.e., effectively tying the claims together into one patent. *See Van Ornum*, 686 F.2d at 948 (explaining a terminal disclaimer tying two patents together “is tantamount for all practical purposes to having all claims in one patent”).

1. This Court’s precedent mandates that the USPTO reject Appellants’ pending claims even when there is no unjustified time-wise extension because a risk of harassment remains.

This Court has repeatedly validated application of ODP principles like those on appeal here. As the Board properly determined, this Court’s precedential decision in *In re Fallaux* is directly on point and controls the outcome in this case. The facts here meaningfully mirror those in *Fallaux* (using the ’364 reference patent as representative):

- The ’019 application’s priority date is earlier than the ’364 reference patent’s priority date;
- The ’019 application’s actual filing date is later than the ’364 reference

patent's application's actual filing date;

- The '364 reference patent is not in the same patent family as the '019 application but shares a common inventor;
- The '019 application is not the first-filed application, but a continuation application in its family; and
- The '364 reference patent's 20-year patent term would likely expire after the '019 application's 20-year patent term (i.e., there does not appear to be a time-wise extension of the patent right).

V. Conclusion

Appellants admit they seek claims that are patentably indistinct from claims already issued to them across six patents. The Board therefore correctly affirmed the rejection of the pending claims of the '019 patent application for ODP based on the multiple-assignee harassment rationale underlying ODP. The Court should affirm.

Dated: August 14, 2026
Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the type-volume limitation of Fed. Cir. R. 32(b). The total number of words in the brief is 1,326, as calculated by the word-processing system used to prepare it.

The brief's typeface and type style comply with FRAP 32(a)(5) and (6).

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CERTIFICATE OF SERVICE

I certify that on August 14, 2026 I electronically filed the foregoing brief with the Clerk of Court using the CM/ECF system, which will send notice of the filing to all counsel of record.

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